

		Defendant's noncompliance has been willful. The Court has imposed lesser sanctions upon Defendant in the hopes of compelling compliance, to no avail. Thus, the Court is convinced that less severe sanctions will not compel compliance and that terminating sanctions are appropriate. It is this Court's determination, however, that the imposition of additional monetary sanctions would be disproportionate and futile. Accordingly, Plaintiff's Motion for terminating sanctions is GRANTED, and Defendant's Answer (ROA 17) is STRICKEN as to Defendant only. Plaintiff is ORDERED to proceed by way of default pursuant to California Code of Civil Procedure Section 585. The Court orders Clerk to give notice.
6.	30-2025-01500136-CU-BC-CJC Barr vs. Elite Beverage International Inc.	No tentative.
7.	30-2026-01552454-CU-FR-CJC Canyon Crossing LLC vs. Udoffia	Before the Court are two (2) Motions for Terminating Sanctions brought by Plaintiff Canyon Crossing LLC ("Plaintiff"), one against Defendant Enoh Stephen Udoffia ("Enoh U.") and one against Defendant Erica Yvonne Udoffia ("Erica U.") (collectively, "Defendants"). ROAs 24, 38. Plaintiff brings these motions based on Defendants' alleged spoliation of evidence. <i>Id.</i> Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2023.030, imposing terminating sanctions by striking Enoh U's Answer, and imposing monetary sanctions in the amount of \$7,760 upon both Enoh U. and his counsel of record, Greenacre Law,

	jointly and severally, for fees and costs incurred in bringing Plaintiff's motion against Enoh U. ROA 24, pp. 3-4, 13. In the alternative, Plaintiff asks the Court to treat this motion as a Motion to Compel Further Responses to Requests for Production, and order Enoh U. to provide verified, code compliant responses and responsive documents. ROA 24, p.3. Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2023.030, imposing terminating sanctions and imposing monetary sanctions in the amount of \$4,460 upon both Erica U. and her counsel of record, Greenacre Law, jointly and severally, for fees and costs incurred in bringing Plaintiff's motion against Erica U. ROA 38, p.3. In the alternative, Plaintiff asks the Court to treat this motion as a Motion to Compel Further Responses to Requests for Production, and order Erica U. to provide verified, code compliant responses and responsive documents. ROA 38, p.2. Together, Plaintiff seeks a total of \$12,220.00 in monetary discovery sanctions. Defendants request that the Court deny Plaintiff's motions in their entirety. ROA 66, p.8; ROA 60, p.8. Discretionary Sanctions for Spoliation of Evidence Spoliation "is a misuse of the discovery process" under California Code of Civil Procedure Section 2023.101, and "is subject to a broad range of punishment, including monetary, issue, evidentiary, and terminating sanctions." Cal. Civ. Proc Code § 2023.010(d); <i>see Cedars-Sinai Med. Ctr. v. Sup. Ct.</i>, 18 Cal. 4th 1, 12 (1998) (noting that destroying evidence in response to, or in anticipation of, a discovery request "would surely be a misuse of discovery within the meaning of [the Discovery Act]. . . ."). Accordingly, courts interpret the spoliation of evidence to encompass the destruction of, significant alteration of, suppression of, or "failure to preserve evidence for another's use in pending or future litigation." <i>Williams v. Russ</i>, 167 Cal. App. 4th 1215, 1223 (2008) (citations omitted);
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	see also <i>Cedars-Sinai Med. Ctr. v. Super. Ct.</i>, 18 Cal. 4th 1, 4 (1998). Where one party's wrongdoing makes it practically impossible for the moving party to prove its case, courts apply a burden-shifting analysis. <i>Williams, supra</i>, 167 Cal. App. 4th at 1226-27. "[A] party moving for discovery sanctions based on the spoliation of evidence must make an initial <i>prima facie</i> showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." <i>Id.</i> at 1227; see also Cal. Evid. Code, § 500 (providing "a party has the burden of proof as to each fact the existence or nonexistence of which is essential to the claim for relief or defense that he is asserting."). Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish that the alleged spoliation was not willful. See <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 201 (1986); see also <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983) ("Only two facts are absolutely prerequisite to imposition of the [terminating] sanction: (1) there must be a failure to comply . . . and (2) the failure must be willful."). Willfulness in the context of nonmonetary sanctions means a "conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance . . ." <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 992 (2009). In choosing a sanction, "[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery." <i>Id.</i> "Discovery sanctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.'" <i>Laguna Auto Body v. Farmers Ins. Exch.</i>, 231 Cal. App. 3d 481, 487 (1991) (quoting <i>Deyo, supra</i>, 84 Cal. App. 3d at 793). Discovery sanctions are intended to remedy discovery
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	abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct. <i>Williams, supra</i>, 167 Cal. App. 4th at 1223 (citations omitted). Notwithstanding the foregoing, courts consider spoliation of evidence a particularly deplorable form of discovery misuse, entitled to terminating sanctions "in the first instance without a violation of prior court orders in egregious cases of intentional spoliation" <i>Williams, supra</i>, 167 Cal. App. 4th at 1223; <i>see Id.</i> (condemning spoliation for its negative impact on fairness and justice, and its potential to lead to erroneous decisions and increased litigation costs). Here, having duly considered Plaintiff's Separate Statements in support of the herein motions for terminating sanctions (ROAs 28, 36), the Court finds that Plaintiff does not satisfy its burden to make a <i>prima facie</i> showing that Defendants' alleged suppression results in the substantial probability of damaging Plaintiff's ability to establish an essential element of a claim. The Court understands Plaintiff to have misinterpreted the duty as requiring a showing of how the suppressed evidence <i>would</i> establish an essential element of a claim, rather than how its suppression would <i>prohibit</i> the fair administration of justice in this particular case. Plaintiff's approach leaves the Court to ponder whether Plaintiff could potentially establish essential elements of their claims by other means, and whether lesser sanctions would suffice. Consequently, the Court's inquiry into the allegations of spoliation halts short of the substantive merits of Plaintiff's claims. Additionally, on July 6, 2026, Court has ordered Enoh U. to provide further, verified, code compliant responses to the Plaintiff's Requests for Production ("RFP"), Set One, as a result of the Informal Discovery Conference ("IDC") facilitated by the Court. ROA 53. Thus, the Court considers
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	Plaintiff's request for alternative relief as to Enoch U. moot. <i>See</i> ROAs 18, 22, 53. Consequently, the Court's inquiry is narrowed to whether Plaintiff is entitled to further responses to their RFP, Set One, to Eric U. Motions to Compel Further Responses to Requests for Production California Code of Civil Procedure Section 2031.310 allows the requesting party to move for an order compelling further response to a [production] demand if, among other things, the demanding party deems that "[a] statement of compliance . . . is incomplete[,] [a] representation of inability to comply is inadequate, incomplete, or evasive[,] or [a]n objection in the response is without merit or too general." Cal. Civ. Proc. Code § 2031.310(a). The motion must be accompanied by a meet and confer declaration and must set forth specific facts showing good cause justifying the discovery demand. Cal. Civ. Proc Code § 2031.310(b). Effective January 1, 2026, a meet and confer declaration "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). Additionally, the moving party's declaration "shall include whether [they have] met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b). If notice of the demand is not served within forty-five (45) days of the responding party's service of their verified responses or verified supplemental responses, the demanding party waives the right to compel further responses absent an agreement by the parties in writing to a specific later date. Cal. Civ. Proc. Code § 2031.310(c). Section 1010.6 extends this deadline by two (2) court days for initial responses served by electronic means. Cal. Civ. Proc. Code § 1010.6(a)(3)(B). If the last day to perform an act
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	falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). “[T]he time within which to make a motion to compel [absent a written agreement between the parties extending the deadline] . . . is mandatory and jurisdictional . . . it renders the court without authority to rule on motions to compel other than to deny them.” <i>Sexton v. Super. Ct.</i>, 58 Cal. App. 4th 1403, 1410 (1997); see <i>Weinstein v. Blumberg</i>, 25 Cal. App. 5th 316, 322 (2018) (reversing a lower court’s order to compel based on the motion’s untimeliness). Here, Plaintiff propounded RFP, Set One, on Erica U. on May 12, 2026. ROA 38, Decl. of Raul Garcia, ¶ 1. On June 11, 2026, Erica U. provided verified responses to Plaintiff’s RFP, Set One, by mail. <i>Id.</i> at ¶ 2. On June 15, 2026, Plaintiff provided Eric U. with an email correspondence outlining Plaintiff’s position demanding further responses. <i>Id.</i> at ¶ 3. Plaintiff made no further attempts to meet and confer by phone, in person, or by video conference before serving Erica U. with the instant Motion for Terminating Sanctions on June 23, 2026. ROA 38, Decl. of Raul Garcia; ROA 38, p. 46. Pursuant to the foregoing, the Court finds Plaintiff has not met the procedural requirements for this Court to properly consider the alternative relief requested on the grounds that Plaintiff’s declaration does not satisfy the meet and confer requirements of California Code of Civil Procedure Section 2016.040. Cal. Civ. Proc. Code § 2016.040. Accordingly, the Court DENIES WITHOUT PREJUDICE Plaintiff’s Motions for Terminating Sanctions. Defendant shall give notice.
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